

Barkat Frozen Foods Pvt Ltd v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 September 2024 · 2024:AHC:142560-DB · WRIT - C No. - 26431 of 2024 · **Writ disposed of; petitioner relegated to Clause 6.5 objection.**

HEADNOTE

Allahabad High Court disposed of a writ seeking quash of a demand notice and recovery certificate (and alternatively reconnection) after the MRI report was produced in Court, leaving the consumer free to press an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner company challenged a demand notice dated 26 February 2024 and a recovery certificate dated 13 June 2024, and alternatively sought reconnection of supply. After a coordinate Bench released the matter, it was listed before this Bench under an administrative order of the Chief Justice. Counsel for the Electricity Department produced the MRI report in Court, gave a copy to the petitioner, and submitted that the writ rested on non-supply of that report and that Clause 6.5 of the U.P. Electricity Supply Code, 2005 provided an efficacious remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection under clause 6.5

HOLDING

Where a writ challenging a demand notice and recovery certificate, with an alternative prayer for reconnection, is founded on non-supply of the MRI report, and that report is produced in Court and supplied to the petitioner, the High Court will not keep the petition pending; the consumer remains free to press an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 26.02.2024 AND RECOVERY CERTIFICATE DATED 13.6.2024

Writ disposed without examining the demand or recovery on merits. ¶ 3-6

NOT DECIDED — RECONNECTION OF THE PETITIONER'S ELECTRICITY CONNECTION

Alternative prayer not granted; consumer left to Clause 6.5. ¶ 3-6